

25NWC01947 25NWC01947

County: los-angeles

Division: Civil Law and Motion

Department: R

Hearing date: 2026-07-28

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Case Number: 25NWC01947 Hearing Date: July 28, 2026 Dept: R

#14

SAENZ v. GENERAL MOTORS

LLC

CASE

NO.: 25NWC01947

HEARING:

Tuesday, July 28, 2026, at 9:30 AM

Defendant

GENERAL MOTORS LLC's Motion for Compliance is DENIED as MOOT. Sanctions are awarded.

Moving party to give notice.

Background

On May 29, 2025, Plaintiff VANESSA SAENZ ("Plaintiff") filed this "lemon law" action against Defendant GENERAL MOTORS LLC ("Defendant" or "GM") and DOES 1 through 10.

Plaintiff's Complaint alleges the following causes of action:

(1) Violation of Civil Code § 1793.2(d)

(2) Violation of Civil Code § 1793.2(b)

(3) Violation of Civil Code § 1793.2(A)(3)

(4) Breach of the Implied Warranty of Merchantability

(5) Fraudulent Inducement – Concealment

On February 10, 2026, Defendant filed the instant motion for Compliance.

Deposition Requirements

Within 120 days after the filing of the answer or other responsive pleading, all parties have the right to conduct initial depositions, each not to exceed two hours, of the following deponents:

(1) The plaintiff.

(2) The defendant, and if the defendant is not a natural person, the person who is most qualified to testify on the defendant's behalf.

(CCP § 871.26(c)(1),(2).)

Defendant

filed its Answer on September 23, 2025. Defendants had a right to depose Plaintiff by January 21, 2026.

After

Defendant filed the instant motion, the parties agreed to depose Plaintiff on July 20, 2026. Thus, Defendant's Motion for Compliance is MOOT.

However,

sanctions are mandatory as Plaintiff failed to demonstrate good cause in failing to appear for deposition within 120 days of Defendant's answer. (CCP 871.26(j)(1).) The Court is required to impose sanctions of \$1,500. (CCP 871.26(j)(1).) Defendant's request for Sanction is GRANTED.

Plaintiff's

attorney is ORDERED to pay Moving Party and their counsel of record

sanctions in the total amount of \$1,500, payable with 15 business days of the Court's issuance of this order.